

FOUNDATIONS OF LAW QUESTIONS AND ANSWERS

2017/2018 to 2021/2022

QUESTION ONE

- a) What are the sources of law? 10 marks**
- b) Where and how can we find the laws in Uganda? 15 marks**

Answer no.1

I. The constitution.

The constitution of the Republic of Uganda (1995) is the supreme law. Article 2 of the constitution provides that the constitution shall take precedent over all other laws. Any other law, custom that is inconsistent with the constitution is null and void to the extent of the inconsistency. Supremacy of the constitution binds the executive (president), Parliament (legislature) and the judiciary. The courts (the Constitutional court of Uganda) can declare a provision of the law and action, policy practice, norm or cultural observance as unconstitutional and therefore invalid.

II. Acts of Parliament/principle legislation

The constitution gives in Article 79, parliament powers to enact laws for peace, order and development of Uganda. Parliament is the supreme law-making organ/body. No other authority can make laws without the authority of the Parliament. Parliament makes laws by enacting Acts of Parliament, examples of these acts include The Local Government Act, The public Health Act, etcetera.

Parliament also exercises its law-making powers through delegation of its authority, a process that leads to the enactment of subsidiary legislation (delegated legislation). Under Article 79 of the constitution, parliament can authorize any other public body (usually the executive authority) to make laws. The delegation of authority is normally justified because parliament does not have enough time, resources and expertise to attend to all legislative issues of the country. However, Parliament must be satisfied that in each case, delegation can objectively be justified.

Subsidiary legislation includes the following: Regulations, Rules, legal

notices, bye-laws/ordinances, proclamations, Executive instruments/orders etcetera.

III. Common law

This means the reasoning of English Judges which have crystallized into the legal principles by their constant application in deciding cases. This common law is only applicable where the matter is not covered by the constitution, Acts of Parliament or subsidiary legislation. In the case of John Nsereko V Gitta [1975] HCB 152, it was held by Ssekandi Ag J, that common law meant the law which was not as a result of legislation. It was the law which was created out of the custom of the people and embodied in the decision of judges.



IV. Judicial decisions

When a judge decides a case, he issues an order giving effect to his decision which is entered on the record of the court. This is a judicial decision and is binding only on the parties to the case. This judgement is based on legal principle (*ratio decidendi*) which should be applicable to all cases of the similar nature or kind and it's inevitable that judges should to greater or lesser extent follow their former decisions of themselves and their colleagues and predecessors under the doctrine of precedent.

The doctrine of precedent requires that judges and courts to follow the reasoning laid down in older/pre-existing decisions. The doctrine of precedent gives rise to the doctrine of "*stare decisis*" where judges must abide by the decisions of higher courts, beginning with the High Court. Hence the magistrate courts must follow the decisions and the reasoning of the High court, Court of Appeal and the Supreme Court. In the same manner, the high court follows the decisions and reasonings of the court of appeal and the supreme court, just as the court of appeal must follow the decision of the supreme court. The supreme court binds all the lower courts, as the supreme court is the highest appellate court in the land.

The doctrine of precedent is justified on the following ground;

- a. Written law does not cover all situations that are likely to lead to the conflict
- b. Reasoning of previous cases aid in the interpretation of written laws that are not clear
- c. Following precedent leads to certainty of what courts are likely to decide. The persons and their legal advisors can have confidence in the future actions of the court. The law should be certain.
- d. Precedent ensures uniformity in decision making as like cases are treated in the same way.
- e. Precedent helps in quick dispensation of justice.

The doctrine of precedent however has its shortcomings

- a. It prevents the development of the laws to cover new matters that have not arisen before
- b. It can also lead to injustice especially where courts adhere principle of law e,g freedom of contract
- c. It kills the spirit of judicial activism as judicial discretion is taken away.
- d. It also leads to a lot of delay as precious little time is spent on digging up records of earlier decisions (Justice delayed is justice denied)

- e. The discretion of courts is fettered, and they quite frequently have to give decisions of which they strongly disapprove but they are bound by a binding precedent.

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V. Customary law

There is no single definition of customary law agreed by lawyers, jurists, social anthropologists' etcetera. However, Section 1(a) of the Magistrates Court Act defines Civil customary law as "the rules of conduct which govern legal relationships as established by custom and usage and not by forming part of the common law nor formally enacted by parliament. In order for a custom to be applicable or to be legal custom, it must fulfil the following conditions.

- a. **Reasonableness.** A custom must be reasonable
- b. **Conformity with the law.** The custom must not be contrary to an Act of parliament. This evident in the Art 2 of the constitution which provides that if any other law or custom is inconsistent with any of the provisions of this constitution, the constitution shall prevail, and that other law or custom shall, to the extent of inconsistent be void. Customary law ranks 3rd in the hierarchy of the legal force and its subject to the constitution and written law.
- c. **Observance as of right.** The custom must be followed openly without force i.e it should not be forced upon the people. However, it must be compulsory so that everybody regards it as law.
- d. **It must be immemorial in nature** i.e it should have been in use for such a long time that nobody remembers its origin. A recent or modern custom normally has no legal effect.
- e. **A custom should be local in nature with a limited application within a limited society**
- f. **Consistency.** It must be consistent with other customs in a particular community without contradiction.

Note: Customary law is only applicable in civil disputes.

Question one (B)

Where and how can we find the laws in Uganda? 15 marks

QUESTION TWO

“Alternative dispute resolution methods commonly known as ADR, are of no relevance in Uganda’s dispute settlement system. They instead waste party’s time who later chose to go for court-based litigation”. Per LLB 1 student (IUIU 2022/2023)

- a) What are the three common techniques of ADR in Uganda?**
- b) Discuss the above statement in light of the pros and cons of ADR methods practiced in Uganda. 25 marks**

ADR is a structured negotiation process under which the parties to a dispute negotiate their own settlement with the help of an intermediary who is neutral and trained in the techniques of ADR. The various strategies involved in ADR include negotiation, conciliation, mediation, mini-trial/early neutral evaluation, court annexed ADR and arbitration.



QUESTION THREE

a) Discuss the hierarchy, composition and structure of courts in Uganda starting with the highest court. [20 marks]

A court is a forum used to adjudicate disputes in a society.

Section 2(v) of the Interpretation Act defines court to mean a court of competent jurisdiction in Uganda.

Section 2(1)(a) of the Evidence Act defines court to include all Magistrates functions and assessors and all persons except arbitrators legally authorized to take evidence.

Article 126 of the constitution provides further that judicial power is derived from the people and shall be exercised by the courts in the name of the people and in conformity with the law and with the values, norms and aspirations of the people.

Courts fall under the judiciary which is an independent legal organ provided for in the constitution Art 128. They are entrusted with the administration of justice and courts of judicature include:

1. Supreme Court
2. Court of Appeal
3. High Court
4. Magistrates Court which is composed of Chief Magistrate, Magistrate Grade 1 and Magistrate Grade 2

Courts of judicature are open to all persons and all manner of disputes in terms of subject matter.

The hierarchy of courts is provided under Art 129 of the constitution and the supreme court is the highest followed by the court of appeal, the High court and finally all subordinate courts that parliament by law established. **The supreme court**

The supreme court is established by Art 130 of the constitution and it's the court of last instance of the whole of the judicial realm and certainly the most powerful court in the land.

The supreme court only decides cases on appeal from lower courts save for the Presidential petitions.

The decisions of the supreme court form precedents which all lower courts are required to follow.

The Chief Justice is the head of the supreme court and presides at its full sitting and in his absence the most senior member of the court present presides over.

The Court of Appeal

It's the second superior court of record and is between the supreme

court and the high court.

It has appellate jurisdiction over the high court and its headed by the Deputy Chief Justice.



It's not a court of first instance except where hearing constitutional cases since it also doubles as the Constitutional court. Art 134 establishes the structure of the court of Appeal to consist of: the deputy Chief Justice as the head and Justices of Appeal not less than seven as parliament by law may prescribe.

Article 134(2) gives the court of Appeal jurisdiction to hear appeals from the decisions of the High Court.

Court of Appeal does not exercise original jurisdiction in any civil and any criminal matters. It only exercises original jurisdiction when sitting as a Constitutional Court under Article 137(1) of the constitution which provides that "Any question as to the interpretation of the constitution shall be determined by the court of Appeal sitting as a Constitutional Court".

In **AG V Major General David Tinyefuza (constitutional Appeal No.1/1997)** it was stated that the constitution gives the constitutional court jurisdiction to interpret the constitution in the sense of giving meaning to words and expressions as used in it.

In exercising its powers, the constitutional court can declare unjust or discriminative laws to be unconstitutional or may read them and bring them in conformity with the constitution.

The constitutional court can also declare laws to be unconstitutional as was the case of Uganda Association of Lawyers and others vs A.G (Constitution petition No.2 of 2003) where the court held that certain provisions of the Divorce Act were inconsistent with the constitution.

The High Court

It's the third superior court in record possessing unlimited original jurisdiction in both criminal and civil cases and exercising.

The Principal judge is the head of the High Court and subordinate courts and in that capacity assists the Chief Justice in the administration of the High Court and subordinate courts.

It also hears appeals from Magistrates courts and exercises general supervisory powers over them.

Unlimited original jurisdiction means that the High Court can try any case of any value, and a crime of any magnitude and kind.

Supervisory powers of the High court, this court has the jurisdiction to exercise administrative control over the decisions of the courts, bodies and tribunals below it.

Under section 17 of the Judicature Act, provides that the High

Court is empowered to exercise general supervisory powers over Magistrates Courts. With regard to such powers, the High court is empowered to take all such steps required for preventing abuse of the process of the court and preventing delays.



The High Court is divided into several divisions

- Civil
- Criminal
- Commercial
- Family
- Land Division
- War crimes
- Anti-corruption etc.

The Magistrates Courts

The Magistrates Court are established under Magistrates Court Act, Cap 16. They are important to in trying to reduce the bulk cases in the higher courts in the country.

Magistrates' courts are divided into three layers i.e Chief Magistrates, Magistrate Grade I and Magistrate Grade II.

The jurisdiction of this court is determined by both geographical location and nature of the case. A Magistrate who is assigned to one area cannot sit in another Magisterial location.

Criminal jurisdiction of magistrate courts includes powers to try all criminal offences other than those of capital nature that carries a death sentence and imprisonment for life which are only triable in the High Court exercising its original jurisdiction and superior courts acting as appellate courts.

Civil jurisdiction of the magistrates

The chief Magistrates' jurisdiction is set at 50 million Uganda shillings and unlimited jurisdiction in disputes relating to conversion, damage to property or trespass.

Magistrate Grade I, can handle cases whose monetary value does not exceed 20 million Uganda shillings with unlimited jurisdiction on matters given by civil customary law.

Magistrate Grade II, can handle matters whose monetary value does not exceed 5,000,000/= according to section 207 MCA.

b) Discuss at least five functions of court in Uganda. [5 marks]

- Courts help in administering justice to people in a society
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QUESTION FOUR

With the aid of examples, give the meaning of the following terms

a) Ratio decidendi 3 marks

The decision of the judgement of a judge may fall under two parts i.e the ratio decidendi (reason for the decision) and obiter dictum (something said by the way)

Ratio decidendi of a case is a principle of law on which the decision is based. When a judge delivers a judgement in a case, he outlines the facts which he



finds he finds have been proved on the evidence. Then he applies the law on those facts and arrives at the decision, for which he gives the reason (ratio decidendi)

The ratio decidendi is binding part of the judicial decision.

b) Obiter dictum 5 marks

This is a circumstance under which a judge may go on to speculate about what his decision would or might have been if the facts of the case had been different.

An obiter dictum is not binding in later cases because it was not strictly relevant to the matter in the issue of the original case. However, obiter dictum can be persuasive (as opposed to binding) in authority in later cases.

c) Judge and magistrate 5 marks

d) Plaintiff and defendant 5marks

The plaintiff is the party who brings a legal action or in whose name it is brought as opposed to the defendant.

So, the person/party who files a law suit against another party is the plaintiff. The plaintiff's lawsuit is an accusation that someone else did wrong that damages the plaintiff. The party accused in the lawsuit of committing wrong doing that harmed the plaintiff is the defendant.

e) Stare decisis 3 marks

Stare decisis loosely translated as "let the decision stand" is where the judges must abide by the decisions of higher courts, beginning with the High Court. Hence, magistrate courts must follow the decisions and reasoning of the High Court, the Court of Appeal and the Supreme Court. In the same manner, the High Court follows the decision of the Court of Appeal just as the Court of Appeal must follow the decision of the Supreme court.

The decision of the supreme court binds all the decisions of the lower courts, as the supreme court is the highest appellate court in the land.

f) Reversing

This is the overturning on appeal by a higher court, of the decision of the court before that hearing the appeal. The appeal court will the substitute its own decision

g) Overruling

A higher court can overrule a decision made in an earlier case made by the lower court e.g. the Court of Appeal can overrule an earlier court decision.

Overruling can occur if the previous court did not correctly apply the law or because the later court considers that the rule of law contained in the previous ratio decidendi is no longer desirable.



Examples of the overruling *Anderton v Ryan* [1985]2 All ER 335 and in the *Miliangos V George Frank Ltd* [1975] 3 All ER 801 which overruled previous authority that judgment could not be given in foreign currency.

h) Per incuriam 3 marks

Carelessness (decision reached by carelessness) or mistake.

A decision which is reached *per incuriam* is one reached by carelessness or mistake and can be avoided. In *Morelle V Wakeling* [1985]2 QB 379 Lord Evershed MR states that “the only case in which decisions should be held to have been given *per incuriam* are those of decisions given in ignorance or forgetfulness of some inconsistent statutory provision or of some authority binding on the court concerned”.

i) Explain the doctrine of precedent and outline four advantages and disadvantages of the doctrine. 16 marks

The doctrine of precedent requires judges and courts to follow the reasoning laid down in the older decisions starting with the High Court. The doctrine of precedent falls under two types namely i.e. Binding precedent and persuasive precedent.

Persuasive precedent is one which is not absolutely binding on court but which may be applied in a later case.

A binding precedent is a decided case which court must follow. A previous case is only binding in a later case if the legal principle involved is the same and facts are similar.

The doctrine of precedent has both advantages and disadvantages

Advantages

- 1) There is certainty in the law. By looking at the at existing precedents it's possible to forecast what a decision will be and plan accordingly.
- 2) There is uniformity in the law. Similar cases are treated the same way. This is important because it gives the system the sense of justice and to make the system acceptable to the public.
- 3) Judicial precedents are practical in nature. It's based on real facts unlike legislation
- 4) Judicial precedent is detailed. There is a wealth of cases to refer to
- 5) Judicial precedent is flexible. There are a number of ways to avoid precedents and this enables the system to change and to adopt to new solutions.
- 6) Precedents help in the quick dispensation of justice
- 7) Reasoning in previous cases aid in interpretation of written laws

that are not clear.

Disadvantages

- 1) Difficulties can arise in deciding what the ratio decidendi is.
Particularly if there are a number of reasons
- 2) There too much case law and it's too complex to navigate



- 3) It prevents the development of new laws to cater for new matters that have not arisen before.
- 4) It kills the spirit of judicial activism as judicial discretions taken away.
- 5) The discretion of the courts is fettered and they frequently have to give decisions of which they strongly disapprove but they are bound by a binding precedent.
- 6) It can lead to injustice especially where courts adhere to the harsh principle of law.

j) What does the concept of jurisdiction mean? 10 marks

QUESTION FIVE

- a) “The origin of law is not from a unified or single source. It can grow and has normally grown out of the ordinary practices of human beings in the course of their interaction”. According to the views of different jurists, discuss the origin of law. 15 marks**

b) Discuss the functions of law society. 10

marks Functions of Law

Law carries out a lot of functions in a modern state. It serves as a means of social control, assisted by such other means as public opinion (morality), religion, education and custom. However, Law is the most institutionalized means of social control in the society. The social functions of law are

varied:

- (1) **Law maintains public order, otherwise called “law and morality” in the society.** In the absence of law, private feud and vengeance supplement the informal social process by which man and groups deal with disputes. Law evolved to supplement the informal alternatives and provides an acceptable rationalized and conclusive



settlement of dispute which is subject to public scrutiny. Apart from maintaining of public order, law also suppress deviant behavior through provision of rules prohibiting certain deviant behavior and the enforcement of such rules. The criminal law is especially apposite her.

- (2) **Law facilitates co-operation action between persons in society and recognizes such action.** It recognizes certain basic underlying interests in society such as the various interests in property and provides a framework of rules for giving effect to them and protecting them; for instance, through trespass. It provides a system of transfer of right and interests (such as in contract and inheritance) and also recognizes and gives effect to the voluntary formation of groups for peaceful purposes such as associations, companies and trust.
- (3) **Law constitutes and recognizes the principal organs of power in the state.** It provides for secession to power and defines who has the right to exercise what kind of power in society. The power so recognized by law turns round to make law in the society. Thus, while the law creates the state, the state creates the law.
- (4) **law communicates and reinforces social values in the society.** Social values are the morals of the society. Law assist the society by identifying these values, ensuring that they are communicated to the society and, if necessary, that they are enforced by the state. While alcoholism may not be morally acceptable in a given state, unless the law bans alcoholism, it remains inoffensive. The moral reprehension to it may grow so much that will then be used to enforce the moral punishable with imprisonment or fine. Law has always enforced morality. With the growth of welfare state and collectivism, a wide range of matter formerly left to the individual conscience has now been made the subject of state control through law.

Parliament has also at times legislated to regulate behavior in advance of public opinion and has used the law partly as an educative medium on social issues as capital punishment, sex, and tribe equality and the dangers of smoking and illicit sex.

- (5) **Law also provide certain basic and fundamental freedoms for the people.** These freedoms which are rooted in the social contract theory of government, includes freedom of life, property, association and so on. Recently, attempts have been made to extend these freedoms to include such welfare issues as free education,

minimum standards of living and so on.

These are the basic functions of law in every society. It is important to note also that law is inevitable for any society to grow. With the points which



have been mentioned and discussed above, it is undoubtedly clear that law play a vital role to ensure growth in the society.

QUESTION SIX

“A good lawyer thinks, reads, critically analyses, determines significant facts and applies the law thereto”. Discuss the methods of instruction in the faculty of law. 25 marks

Socratic method.....

Lecturer method.....

Case methods.....

..... Tutorial methods.....

Language law.....

QUESTION SEVEN

- a) **“You cannot define law, but rather what it does and what rules apply through the different theories”. In light with the above statement, refer to any five (5) schools of thought and define law.**

a) **The idea of law from the sociological school of thought 5 marks** The sociological school as advanced by Prof. Roscoe Pound looks at law as a product of values and attitudes of a given society. According to his theory of social engineering, law is a machine designed to meet the requirements of a particular society.

b) **The idea of law from the natural law 5 marks** Natural law school believes that law is eternal and divine. Cicero, a scholar of this school of thought asserted that natural law is inborn, universal, and unchanging (or immutable). Key also to the natural theory is a belief that law should have

internal morality (ethics)

c) The elements from John Austin definition of law 5 marks

Austin was a positivist scholar of law and defines law as a command of the sovereign authority capable of maintaining law and order within a specified geographical area. The sovereign authority could take the form of monarchy, a democratically elected leader or an autocrat/dictator.

d) The meaning of law from the historical theory 5 marks



This theory as expounded by Savigny looks at law as a product of historical developments in a particular society. This school of thought believes that law is developed by custom and popular acceptance for the concerned society and not by arbitrary action.

e) The meaning of law from the Marxist theory 5marks

Karl Marx did not view law in the same way as other scholars. He argued that law was a tool (or instrument) for promotion of the interests of the dominant capitalist class. According to Marx, law and the state were creations of the dominant class as an ideological tool for purposes of perpetuating the exploitation of the lesser classes. His theory of law has got a number of general themes which could be summarised as follows:

1. Law is political and cannot be detached from politics.
2. Law and the state are closely connected though they can be separated.
3. Law gives effect to the prevailing economic relations, Law is a reflection of the prevailing economic relations at the material base of society, and as such there is no independent theory of the law.
4. Law is potentially coercive and manifests the state's control over the means of coercion.
5. Law is an ideological tool meant to obscure power relations.

All the above definitions, however, have some common elements which can help in the understanding of the meaning of law. The key elements capture the idea of sources, application and effect of the law. These elements are:

- (a) **Law is a command.** A command is a compulsory requirement. What it lays down is not subject of discussion or modification. The purpose is to maintain law and order. Norms as custom which are not commands are not laws.
- (b) **The command must be complied with** and binds all persons irrespective of social, economic or political status/affiliation. Laws have uniform application in terms of requirements. Exception to the law can only

be given by the law itself. All persons are therefore under legal compulsion to obey the law.

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- (c) The law puts in place sanctions that may be imposed on those who do not comply with it. Sanctions include fines, disqualifications, imprisonment etc.
- f) **Legal realists** advance the view that law should be looked upon from the point of view of application of the rules by the courts.

Without hinging on a particular school of thought, law may therefore be defined as “**rules and regulations that govern a particular society**”.

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QUESTION EIGHT

- a) “Court’s decision in *Uganda Motors V Wavah Holdings Limited*, civil Appeal No. 19/1991 had a profound effect on the legal system in Uganda”. Per LLB 1 student. Discuss. 25marks

QUESTION NINE

Distinguish the following

- a) **Civil law and criminal law 5marks**

Criminal law is concerned with punishing offenders and is enshrined mainly in the Penal Code Act. On the other hand, civil law is concerned with disputes between individuals or legal persons who may include government or public bodies. While criminal proceedings end in an acquittal or conviction, civil proceedings end in the finding if one is liable or not. The burden of proof in civil cases is on a balance of probabilities while in criminal cases the prosecution must establish guilt

beyond all reasonable doubt

b) Public law and private law 5 marks

Public law consists of the branches of law that essentially govern the relationship between the state and the individual such as Constitutional Law, and Administrative Law. Private law is a branch which is concerned



with rights and duties of individuals. These may be directly imposed by the law or through the consent of individual's Private law, for example includes the law of tort

c) Public international law and private international law 5 marks

Public International Law is the body of law that governs the legal relations between or among sovereign States or nations. These are basically set of rules generally regarded and accepted as binding in relations between States and between nations. The body of rules established by custom or treaty and recognized by nations as binding in their relations with one another. The rules acknowledged by the general body of civilised independent States to be binding upon them in their mutual relations.

Private international law is the area of law that comes into play whenever a court is faced with a question that contains a foreign element, or a foreign connection. The presence of such a foreign element in a legal matter raises a number of questions and it's the function of private international law to provide an answer to these questions and to ensure just solutions. Its concerned with all legal relationships between private entities and thus includes, for example family law and the law of contracts and obligations. These laws differ from country to country.

d) Substantive and procedural law 5 marks

Substantive law is the actual law as opposed to adjectival law while procedural law are the formal steps to be taken in an action or other judicial proceeding e.g. the procedural law of the Penal Code is found in the Criminal Procedure Code Act. Procedural law lays down mechanisms through which substantive law can be enforced.

e) Islamic law and customary law 5 marks

Customary law is a rule of tradition regularly obeyed and followed by an ethnic group. It consists of rights and religious obligations vested in the inhabitants of a given community. Before a custom is to be relied on, it must be proved it actually exists.

f) Public international Law and Private International Law

Public international law consists of those rules which regulate the relations between states. The disputes between states can be settled by the international court of justice.

Private international law is mainly concerned with determining which national law governs a case where there is a foreign element. For

example, if a foreigner commits a crime in Uganda, then the private international law will decide which laws to use to prosecute the foreigner.

g) Common law vs Civil law

The common law and civil law systems are the products of two fundamentally different approaches to the legal process. In civil law, the



main principles and rules are contained in codes and statutes, which are applied by the courts codes. Hence, codes and statutes prevail, while case law constitutes only a secondary source of law. On the other hand, in the common law system, the law has been dominantly created by judicial decisions, while a conceptual structure is often lacking. This difference is the result of different role of legislator in civil law and common law. The civil law is based on the theory of separation of powers, whereby the role of legislator is to legislate, while the courts should apply the law. On the other hand, in common law the courts are given the main task in creating the law. **QUESTION TEN**

- a) **Discuss the concept of judiciary 5marks**
- b) **Identify the components of criminal justice system 5 marks**
- c) **Mention three functions of the judiciary in Uganda 5 marks**
- d) **Discuss courts in Uganda in accordance with their hierarchy, composition and structure starting from the highest hierarchy. 5 marks**
- e) **Discuss the principles which courts in Uganda must follow in deciding cases. 5 marks**

QUESTION ELEVEN

Lamu Rajib is a judge of the high court of Uganda. You are a legal researcher in the judiciary of Uganda and affiliated to his chambers. He has directed you to write a legal opinion on the principles used by judicial officers in the administration of justice in Uganda. Write that opinion accordingly. 25 marks

Judicial decisions

When a judge decides a case he issues an order giving effect to his decision which is entered on the record of the court. This is a judicial decision or Judgment in the strict sense, and is binding only on the parties to the case. But the judgment will have been based on some legal principle (*ratio decidendi*) which should be applicable to all cases of a similar kind, and it is inevitable that judges should to a greater or less degree follow the former decisions of themselves and their colleagues and predecessors under the doctrine of Precedent.

The doctrine of precedent requires judges and courts to follow the reasoning laid down in older/pre-existing decisions. The doctrine of precedent gives rise to the doctrine of “Stare

decisis” where the judges must abide by the decisions of higher courts, beginning with the High Court. Hence Magistrates Courts must follow the decisions and reasoning of the High Court, Court of



Appeal and the Supreme Court. In the same manner, the High court follows decisions of the court of Appeal and the Supreme Court, just as the Court of Appeal must follow the decisions of the Supreme Court. The decision of The Supreme court binds all the lower courts, as the Supreme Court is the highest appellate court in the land.

The Doctrine of precedent is justified on the following grounds

- a) Written law does not cover all situations that are likely to lead to conflict.
- b) Reasoning in previous cases aid in interpretation of written laws that are not clear.
- c) Following precedent leads to certainty of what courts are likely to decide. That is persons and their legal advisers can have confidence in the future action of the courts. It is better in the words of lord Eldon LC “the law should be certain than that every judge should speculate upon improvements in it”
- d) Precedent ensures uniformity in decision making as like cases are treated in the same way.
- e) Precedent helps in quick dispensation of justice. The doctrine of precedent also allows Uganda courts to use (without being bound) the decisions of other higher courts and laws from other common law countries.

The doctrine of precedent however has its short comings.

- a) The doctrine prevents the development of the law to cover new matters that have not arisen before e.g. artificial fertility
- b) The doctrine of precedent can lead to injustice especially where courts adhere to a harsh principle of law e.g. freedom of contract
- c) The doctrine also kills the spirit of judicial activism as judicial discretion is taken away
- d) The doctrine may also lead to a lot delay as precious little time is spent on digging up records of earlier decisions. Justice delayed is justice denied.
- e) The discretion of the courts is fettered, and they quite frequently have to give decisions of which they

strongly disapprove but they are bound by a binding precedent.

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QUESTION TWELVE

“After having gone through the various definitions of law, I conclude that there is no unanimous definition of the concept of law and any attempt to come up with one will be met with harsh criticism from various theorists, jurists and law students” per Bosiko Jikwatekoo (LLB 1 student).

In light with the above statement, please comment on the following;

g) The idea of law from the sociological school of thought 5 marks
The sociological school as advanced by Prof. Roscoe Pound looks at law as a product of values and attitudes of a given society. According to his theory of social engineering, law is a machine designed to meet the requirements of a particular society.

h) The idea of law from the natural law 5 marks
Natural law school believes that law is eternal and divine. Cicero, a scholar of this school of thought asserted that natural law is inborn, universal, and unchanging (or immutable). Key also to the natural theory is a belief that law should have internal morality (ethics)

i) The elements from John Austin definition of law 5 marks
Austin was a positivist scholar of law and defines law as a command of the sovereign authority capable of maintaining law and order within a specified geographical area. The sovereign authority could take the form of monarchy, a democratically elected leader or an autocrat/dictator.

j) The meaning of law from the historical theory 5 marks

This theory as expounded by Savigny looks at law as a product of historical developments in a particular society.

This school of thought believes that law is a developed by custom and popular acceptance for the concerned society and not by arbitrary action.

k) The meaning of law from the Marxist theory 5marks
Karl Marx did not view law in the same way as other scholars. He argued that law was a tool (or instrument) for promotion of the interests of the dominant capitalist class. According to Marx,

law and the state were creations of the dominant class as an ideological tool for purposes of perpetuating the exploitation of the lesser classes. His theory of law has got a number of general themes which could be summarised as follows:



6. Law is political and cannot be detached from politics.
7. Law and the state are closely connected though they can be separated.
8. Law gives effect to the prevailing economic relations, Law is a reflection of the prevailing economic relations at the material base of society, and as such there is no independent theory of the law.
9. Law is potentially coercive and manifests the state's control over the means of coercion.
10. Law is an ideological tool meant to obscure power relations.

All the above definitions, however, have some common elements which can help in the understanding of the meaning of law. The key elements capture the idea of sources, application and effect of the law. These elements are:

- (d) Law is a command. A command is a compulsory requirement. What it lays down is not subject of discussion or modification. The purpose is to maintain law and order. Norms as custom which are not commands are not laws.
 - (e) The command must be complied with and binds all persons irrespective of social, economic or political status/affiliation. Laws have uniform application in terms of requirements. Exception to the law can only be given by the law itself. All persons are therefore under legal compulsion to obey the law.
 - (f) The law puts in place sanctions that may be imposed on those who do not comply with it. Sanctions include fines, disqualifications, imprisonment e.t.c.
- l) **Legal realists** advance the view that law should be looked upon from the point of view of application of the rules by the courts.

Without hinging on a particular school of thought, law may therefor be defined as “**rules and regulations that govern a particular society**”.

m) Five functions of law in a democratic society 5

marks QUESTION THIRTEEN



“The faculty of Law being a unique school, it relies largely on the case method of teaching as one of its leading methods” per LLB 1 student. Discuss the statement. 25 marks

QUESTION FOURTEEN

The doctrine of precedent plays a significant role in Uganda’s legal system. Most judicial officers rarely deliver a judgement without reference to an applicable precedent”. Discuss the statement

Judicial precedent

When a judge decides a case, he issues an order giving effect to his decision which is entered on the record of the court. This is a judicial decision or Judgment in the strict sense, and is binding only on the parties to the case. But the judgment will have been based on some legal principle (*ratio decidendi*) which should be applicable to all cases of a similar kind, and it is inevitable that judges should to a greater or less degree follow the former decisions of themselves and their colleagues and predecessors under the doctrine of Precedent.

The doctrine of precedent requires judges and courts to follow the reasoning laid down in older/pre-existing decisions. The doctrine of precedent gives rise to the doctrine of “Stare decisis” where the judges must abide by the decisions of higher courts, beginning with the High Court. Hence Magistrates Courts must follow the decisions and reasoning of the High Court, Court of Appeal and the Supreme Court. In the same manner, the High court follows decisions of the court of Appeal and the Supreme Court, just as the Court of Appeal must follow the decisions of the Supreme Court. The decision of The Supreme court binds all the lower courts, as the Supreme Court is the highest appellate court in the land.

The Doctrine of precedent is justified on the following grounds

- f) Written law does not cover all situations that are likely to lead to conflict.
- g) Reasoning in previous cases aid in interpretation of written laws that are not clear.

- h) Following precedent leads to certainty of what courts are likely to decide. That is persons and their legal advisers can have confidence in the future action of the courts. It is



better in the words of lord Eldon LC “the law should be certain than that every judge should speculate upon improvements in it”

- i) Precedent ensures uniformity in decision making as like cases are treated in the same way.
- j) Precedent helps in quick dispensation of justice. The doctrine of precedent also allows Uganda courts to use (without being bound) the decisions of other higher courts and laws from other common law countries.

The doctrine of precedent however has its short comings.

- f) The doctrine prevents the development of the law to cover new matters that have not arisen before e.g. artificial fertility
- g) The doctrine of precedent can lead to injustice especially where courts adhere to a harsh principle of law e.g. freedom of contract
- h) The doctrine also kills the spirit of judicial activism as judicial discretion is taken away
- i) The doctrine may also lead to a lot delay as precious little time is spent on digging up records of earlier decisions. Justice delayed is justice denied.
- j) The discretion of the courts is fettered, and they quite frequently have to give decisions of which they strongly disapprove but they are bound by a binding precedent.

Question fourteen

Write short notes on the following

I. Common law and Equity

Common Law means the reasoning of English Judges which have crystallised in to legal principles by their constant application in deciding cases. The term common law was in use in the time of Edward 1 to describe that part of the law common to the whole of England which was not statutory. This common law is only applicable where the matter is not covered by the constitution, Acts of parliament or subsidiary legislation. In the case of *John Nsereko v George Gitta [1975]*

HCB 152 It was held by Ssekandi Ag J. that common law meant the law which was not as a result of legislation. It was the law which was created out of the custom of the people and embodied in the decisions of judges. Uganda of



course inherited the common law doctrines concerning the authority of judicial precedent as sources of law, because of the reception of English law in our laws.

Doctrines of Equity

Equity is a body of rules of fairness or natural justices or public morality in a particular community. These are principles of fairness that were adopted by English courts (chancery courts) to minimise the effects of unfair common law principles. Those principles are based on consideration of equality and fairness.

These principles are expressed by way of maxims (sayings) Here below are some of the maxims that are applied in adjudication of disputes according to the doctrine of equity.

- a. Whoever comes to equity must come with clean hands
- b. Equity does not allow a wrong to have no remedy
- c. A person cannot benefit from his own wrong
- d. Equity should follow the facts
- e. Whoever seeks equity must do equity
- f. Equity aids the vigilant
- g. Equity regards that which ought to be done as done
- h. He who comes to equity must come with clean hands.
- i. Equality is equity

II. Supreme court and court of Appeal

The Supreme Court (S.C)

The S.C is established by Article 130 of the Constitution and is the court of last instance of the whole judicial realm and certainly the most powerful court in the land. The S.C only decides cases on appeal from lower courts save for Presidential Election Petitions, where the

S.C has original jurisdiction which means that an aggrieved candidate in a presidential election has to petition the S.C directly and no other court. The decisions of the S.C form precedents which all lower courts are required to follow.

The Chief Justice is the Head of the Supreme Court and presides at its full sitting and in his absence the most senior member of the court present. When hearing appeals from the Court of Appeal sitting as the constitutional court, the S.C is required by law to be constituted by a full bench of members of

the court. Where any of the Justices is unable to attend then the President shall for that purpose appoint an acting Justice.

The decision of the court is usually given in a single judgment. In case of a unanimous decision but where the presiding justice states that there was a dissenting view, a separate judgment is given as well for



the Justice who is dissenting. The S.C has powers to confirm or vary the decision of the Court of Appeal with such directions as may be appropriate. It may alternatively order a retrial. There is no appeal from the decision of the S.C. and according to the Judicature (Amendment) Act 2011 the Supreme Court shall consist of the chief justice and ten justices of the Supreme Court.

III. Stare decisis and Ratio decidendi

Stare decisis (*let the decision stand*) determines the weight to be attached to particular precedents. The hierarchy of courts is such that some courts have greater authority than others. The general rule provided by the doctrine of stare decisis is that a decision made by a court higher up in the hierarchy binds all lower courts.

Ratio decidendi This Latin term literally translates as the reason for the decision. The ratio decidendi of a case is the principle of law on which a decision is based. When a judge delivers judgement in a case, he outlines the facts which he finds to have been proved on the evidence. Then he applies the law to those facts and arrives at a decision, for which he gives the reason (ratio decidendi).

IV. Mandamus and Certiorari

V. Written Law and Unwritten law

Written law includes the Constitution, Acts of Parliament and subsidiary legislation, while unwritten law includes laws whose principles are not recognized but not written anywhere e.g. Common Law, and Customary Law. Written law takes precedence over unwritten law.

VI. Doctrine of precedent

The of precedent form a basis of case law. The principle behind the doctrine is that each case the judge applies an existing legal principle of law by following the example or precedents of earlier decisions. It's in this way that the judges may expand and develop the law.

Types of precedents and these are

Precedents may be original, binding or persuasive.

An original precedent ensues when a point of law in a case has never been decided before, then whatever the judge decides will form new precedent for future cases to follow.

The doctrine of binding precedent refers to the fact that, within the hierarchical structure of the courts, the decision of a higher court will be binding on a lower court. Every court in the hierarchy must follow the

prior decisions of courts higher than itself even if the decision is wrong. It may not decline to follow the higher courts' decision on any ground. In general

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terms, this means that when judges try cases they will check to see if a similar situation has come before a court previously.

If a precedent from a similar situation exists and it was set by a court of equal or higher status to the court deciding the new case, then the judge in the present case should follow the legal principle established in the earlier case. Where the precedent is from a lower court in the hierarchy, the judge in the new case may not follow but will certainly consider it.

A persuasive precedent is one which is not binding on a court but which may be applied. The following are some examples: i. Decisions of courts lower in the hierarchy. For instance, the Court of Appeal may follow a High Court decision, although it is not bound to do so. ii. Decisions of foreign courts. These are usually cited where there is a dearth or total lack of local authority on a point. iii. Obiter dicta of courts higher in the hierarchy. iv. Persuasive authority may also be found in legal writings in textbooks and periodicals, where there is no direct authority in the form of decided cases. Accordingly, in *FRA Williams v Daily Times (Nig) Ltd*¹⁵, it was held that decisions of Courts of Co-ordinate Jurisdiction are persuasive in nature. Also in *Yahaya v State*¹⁶; it was held that English authorities are of persuasive status in Nigerian Courts. Can use Ugandan cases

VII. Overruling precedent. A case is said to be overruled if it is expressly deprived of all legal effects so that it ceases to have any authority at all. Overruling is usually done where it is felt that the earlier case was wrongly decided or that it was decided without regard to an existing and legally tenable authority or principle of law.

VIII. Municipal and International law

Municipal law is the group of laws that apply within the state and regulates relations amongst citizens as well as relations between the citizens and state. It therefore has geographical limits.

International law is that which is accepted to govern international relations between states. It is composed of conventions, treaties and so on. International law may be public where it is a body of rules and principles of action binding upon civilized states and in their relations with one another or it may be private where by the body of rules determine the questions of jurisdiction in cases involving a foreign element. Uganda employs a dualist as opposed to a monist system of applying International Law, which means that all international treaties

must be domestically approved by Parliament before they can be regarded as applicable.



QUESTION SIX

“A good lawyer thinks, reads, critically analyses, determines significant facts and applies the law thereto”. Discuss the methods of instruction in the faculty of law. 25 marks

ASSIGNMENT: For group Ambitious

EXPLAIN THE VARIOUS METHODS OF TEACHING LAW? (10MARKS)

A method is a particular procedure for accomplishing or approaching something and in this case the teaching of law. There are different methods of teaching law which subject matter involves conveying material or information about what **Granville William** defines as a set of rules created and enforceable by social or governmental institutions to regulate behavior. The various methods of teaching law are explained below.

1. Socrates Method

The Socratic method also referred to as “lecture method/cold calling” is named after Greek philosopher Socrates who taught students by asking question after question. Socrates sought to expose contradictions in the students' thoughts and ideas to then guide them to solid, tenable conclusions. The method is still popular in legal classrooms today.

This method is a dialogue between lecturer and students, instigated by the continual probing questions of the lecturer, in a concerted effort to explore the underlying beliefs that shape the students' views and opinions.

In this method, the lecturer plays a dominant role in this method where he or she does the talking (lecturing) while the students do supposedly do the listening and note taking and in this the lecturer may allow questions during and after the lecture. This method exposes students to a uniform body of information through assigned readings and oral instruction which takes the following steps; understanding the belief, summing up the person's argument, asking for evidence, challenging

assumptions and repeating the process again

The Socrates method offers students an opportunity to have direct interaction or face to face discussion with the facilitators and use the opportunity to ask questions for clarifications. The best aspect in this method is that through the question and answer session, students realize



that their arguments are untenable and come around to the correct view about the aspects of law hence learning the law.

Other merits of this method include; it's considered to be economical, the lecturer can cover a lengthy syllabus in a logical sequence properly as well as inspires students thereby boosting their motivation and confidence. The demerits include; limits independent thinking, experiment and information retention by students since they obtain readymade information from the lecturer.

2. Case Method

The case method in legal education was invented by Christopher Columbus Langdell, Dean of Harvard Law School from 1870 to 1895. Langdell conceived of a way to systematize and simplify legal education by focusing on previous case law that furthered principles or doctrines.

A case is an instance of a particular situation. In this method, students are exposed to case books under the instruction of their lecturers having had a collection of cases that they are expected to analyze critically before coming to class. The students participate in the teaching process by engaging with their lecturer in dialogue about cases under consideration. This improves on their ways of interpreting and appreciating the principles of the cases hence learning the law. In addition, cases teach students how to apply theory in practice and how to induce theory from practice. The case method cultivates the capacity for critical analysis, judgment, decision-making, and action. However, case studies are generally on one person, but there also tends to only be one experimenter collecting the data. This can lead to bias in data collection, which can influence results more than in different designs. It is also very difficult to draw a definite cause/effect from case studies.

Furthermore, the qualities of good law students are developed by studying conflicting cases from different jurisdiction and this brightens students on the methods of the lawyers and the judge in the case law and it refers students to the same sources that lawyers and judges use and in this students learn to break down a case and to analyze a story into legal and factual issues.

In addition to this, the cases have dramatic interest which forces attention and concentration which leads to concreteness of meaning and this trains students to judgments on critical facts in a way similar to that of the practicing lawyer and through this, a student is able to grasp the historical development of law hence learning the law.

The case method is also considered to expose students to varying viewpoints for better understanding, improve their long-term memory, bridge theory to practice and promotes development of skills like critical thinking. However, there are limitations associated with this method such as; being subject to



reader bias based on their interpretation of the content, it's time consuming compared to say the lecture method and may reduce control over student's learning.

3. Tutorial Method

This is when learners are given tasks by their lecturers and prepare them for presentation and are guided on question approach or given tutorial assistance. The main aim of tutorial style of teaching is to help the pupils to improve their cognitive and other academic performance. In this method of teaching, the entire class is divided into a small part or group and the tutor tries to find out the problems of students and help to find out the current solutions. Through the group discussions, learners gather and share different ideas on a given topic. This builds students' problem-solving skills and through sharing views on the topic being given by the lecturer, students discover a lot hence enhancing the law.

It is a method of transferring knowledge and a part of learning process. It is more interactive and specific than a book or a lecture. Tutorial seeks to teach by example and supply information to complete a certain task which helps to enhance learners intellectual, communication and social skills.

The tutorial method involves different steps. It begins when students identify a question, concept, or problem in an academic class that is causing them confusion. This initial question can come from material presented in lectures, textbook readings, videos, handouts, tests, quizzes, projects, or other resources. The other steps include discussion group formation, students completing the study homework, tutor checking the notes and providing clarifications.

Other benefits of the tutorial method are; individual and unique learning experience, one-on-one attention, improves academic performance, improves attitude towards learning and school, encourages self-paced and self-directed learning, improves self-esteem and confidence, improves work and study habits, encourages independence and responsibility and helps overcome learning obstacles.

The disadvantages associated with this method include; individuals must be motivated enough to complete tutorial, it frequently takes novices longer to learn via tutorial than via classroom setting and the density of presentation may be high because content must be self-contained.

4. Moot Method

Mooting is essentially a mock trial where two sides argue a point of law in front of an acting judge, who bases on the presentation by each sides

and decides who wins. It involves two parties the Plaintiff and the Defendant. The three theoretical bases for mootng as a means of teaching that is constructivism, experiential learning and problem-based.



The Moot court is a method of teaching Law and legal skills that enable students acquire skills to analyze and argue both sides of a hypothetical issue thereby teaching students the practical side of practicing law. In this method students are assigned with topics to discuss by their lecturer and they need to approach such topics with an open mind under the influence of the lecturer acting like the judge guiding them on the approaches. Moots are usually done in form of competitions.

A moot court competition simulates a court hearing (usually an appeal against a final decision), in which participants analyse a problem, research the relevant law, prepare written submissions, and present oral argument. Moot problems are typically set in areas of law that are unsettled or that have been subject to recent developments. They usually involve two grounds of appeal, argued by each side.

The procedure imitates that followed in real courts: the judge enters, the mooters and the judge bow to each other, the clerk announces the matter, the mooters give their appearances and are then called on in turn to present their submissions, the judge asks questions of the mooters, the court adjourns, and the judge then returns to deliver a brief judgment and some feedback.

In summary, there are three key features of mooting;

- students assume the roles of advocates before a simulated bench (which may comprise professionals and/or academics, or students — depending on the formality of the proceedings);
- students argue points of law before the bench, which arise from a hypothetical scenario they have been supplied with;
- students are expected to be able to answer questions from the bench relating to the arguments presented or any other relevant law that the students may not have considered.

In preparation of the moots, students are challenged to get exposed to different sources of law for example the case law, common law among others and in this they are expected to critically analyze the assigned topics, draft necessary documents before the competition and through their participation in the moots process by engaging with their fellows by the guidance of an acting judge about issues under consideration, this improves on their ways of interpreting and appreciating the principles of the law hence learning the law.

Furthermore, this method conforms students on the methods of the lawyers and the judge during court sessions and it refers them to the same sources that lawyers and judges use and through moots students

gain communication skills, confidence and to break down a case and to analyze a story into legal and factual issues hence learning the law. As such mootng enables students



- to engage with and think deeply about interesting and topical legal issues;
- to enhance their advocacy, legal research and writing skills;
- to work closely with and learn from their peers; and
- to demonstrate their interest in advocacy and competence as an advocate to prospective employers. Most students find mooting to be intellectually rewarding and highly enjoyable. It can be nerve-racking and frustrating, but it is a lot of fun.

The challenges with the Moot method include; limited time available to speak, staff workload, student absence, scared students and consistency of marking.

5. Seminars/Workshops/Symposiums

A seminar is a group meeting (either face to face or online) where a number of students participate at least as actively as the facilitator, although the facilitator may be responsible for the design of the group experience, such as choosing topics and assigning tasks to individual students.

Seminars can range from six more students, upon it to thirty students in the same group. Because the general perception is that seminars work best when numbers are relatively small, they tend to be found more at the last year of under-graduate programs.

The seminar method is the most modern and advanced group technique which is usually used in higher education. It is an instrumental technique it involves generating a situation for a group to have a guided interaction among themselves on a theme. It refers to a structured group discussion what usually follows a formal lecture or lecturers often in the form of an essay or a paper presentation on a theme. This helps students enhance their knowledge from presentations delivered by subject matter experts.

In addition, the instructor is able to teach modules that build upon one another, students gain more expertise than is possible from a single workshop, consolidated block of time helps focus students' attention on seminar topic, teaching a group (e.g. class) helps builds peer support network and students learn skills that they can apply immediately to real information problems. The weaknesses with this method include; limited scope is covered, preparation and teaching takes a lot of hard work, schedule conflicts hard to avoid leading to student/instructor absence, may require multiple times, depending on topic and how often students population turn over and requires time plus financing.

6. Supervised Analytic Writing Method

This method involves writing an assignment on a topic selected by the lecturer in consultation with a member of staff who will serve as the student's supervisor. The requirement of analytic is not fulfilled unless the student demonstrates that he or she has critically researched through the



major relevant sources on topic and has critically developed to the very depth in the process of analyzing and discussing major issues hence learning the law. This method boosts the student's writing, analysis and thinking skills however requires considerable time commitment and investment in the required tools.

7. Clinical Method

This method was introduced in India in 1999 by Dr. N. R. Madhava Menon. The establishment of clinics paved the way to focus on the functional aspects of legal education and to expose students to the standards of service and excellence. Students are introduced to relevant areas of law practice through facts from real life situations. Law students are trained to be productive members of a community of lawyers with refined skills to address the demands of social, political, and economic justice of the society.

Clinical programs aim to develop the skills of interviewing, fact investigation, extensive application of problem-solving skills, attorney-client relations, negotiation and other alternative dispute resolution methods, ethical aspects, and trial skills. Students perform paralegal aid services such as visiting jails, registering marriages, births and deaths and preparing affidavits. As such, students are much more pro-active participants in the learning process since they are learning by doing, increases motivation and breeds professional ethics and motivation. However, this method is costly and presents difficulties in supervision and assessment.

8. Legal Research Method

Under this method, students are instructed by their lecturers to go for Legal research which is a process designed to help students check for legal precedents and it can be used to find answers for various legal issues. Research helps students to solve their legal problems and there are three main sources from where to get basic legal materials i.e., the statutes, cases and other sources. Research in statutes is necessary because some may be repealed, others consolidated and replaced and others amended and a student must ensure that that what he or she researches about is the current law. Through the legal research, a student is addressed to various legal aspects hence learning the law. This method is however, time consuming and costly.

9. Independent/Self-study Method

In this method, the lecturer provides students a reading list with references like textbooks, legislation and articles for independent reading by students. Through this method, students are able to obtain

in-depth understanding of law information through both primary and secondary sources and they are able to consult their lecturers on the areas that they are not well conversant with. Through this, students discover historical development and foundation of law hence learning the law. This method is also convenient for a time and place that suits the learner, the learner can focus on the exact



subject matter of interest and can be evidenced provided the study area was defined at the onset. However, this method requires learners to be highly motivated and self-disciplined. Also the self-study method may not be externally verified.

10. Internship Method

Internship is a professional learning experience that offers meaningful, practical work related to a student's field of study or career interest.

In this method, students are given a period of time for attachment to practitioners in the legal fraternity i.e. law firms during which they are exposed to the practical experience in the subject matter. The students are assigned coaches during the time and are supervised by their lecturers with the result that an assessment report is prepared at the end of the internship period. This gives a student the opportunity for career exploration and development as well as build professional skills. Where internship is not well embraced, the following may arise; unavailable &/ unsupportive coaches, no formal training and no educational support.

10. Online Learning Method

This method considered to be a distance learning method is an educational process where students receive instruction through online classes, video recordings, video conferencing, or any other audio/visual technology medium. It enables learners to receive education without having to be physically present in a classroom. This method allows for flexibility, reduces costs and saves time. However, online classes also have disadvantages such as lack of human interaction, plagiarism issues and a disconnect with the instructor.

In conclusion, a multi-faceted approach is adopted in teaching law as seen from the teaching methods spelt out above.

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AN OVERVIEW OF THE LEGAL SYSTEM IN UGANDA*

J. Oloka-Onyango**

Legal systems covering a wide range of areas extending from governance to trade existed throughout the pre-colonial entities that are in the region of the world now known as “Uganda.” Colonialism supplanted most of those systems and replaced and/or modified them with its own. Hence, it is best to describe the legal system existing in Uganda as a “hybrid” one.

Although contact with the external world dates back to the mid-15th century, it is only with the Scramble for Africa (signified by the Berlin Conference of 1884) that imperial penetration of Uganda commenced in earnest. Thus, in 1888, the Imperial British East Africa Company (IBEACo) was established to operate the territory of Uganda as a company with a Charter that authorized it to “undertake the duties of general administration, the imposition and collection of taxation and administration of justice in the areas under its control.” The first traces of legislation can be found at this time

Uganda became a protectorate of the United Kingdom in 1894 through a combination of military force and several “agreements” signed with the existing kingdoms. By virtue of the founding legal instruments, Uganda came to apply mainly English Common Law.

Of particular importance in this regard is the 1902 Order-in-Council which defined the territorial limits of the protectorate and its administrative divisions. Article 12 of the Order empowered the Commissioner to make ordinances for the administration of justice, the raising of revenue and for the “peace, order and good government of all persons in Uganda.” Furthermore, the Order also applied all the existing laws prevailing in the United Kingdom (and some of those in India) at the time. This is known as the “Reception Clause.”

Thus, throughout the colonial period, the following were the laws which applied:

1. English law, and cases decided in the various courts of the UK;
2. Some English statutes (those of general application) as well as particular enactments passed by the Legislative Council (equivalent to the Parliament of the time), as well as some Executive enactments by

the Governor;

3. Customary Law, to a limited extent—provided it was not, according to Article 23 of the Order “repugnant to established norms of justice and morality” or inconsistent with any laws or orders passed by the British Crown. In effect, these provisions re-create Customary Law in the image of



the British power. At independence, a Constitution was enacted to provide for the local governance of the country: it extended the hybrid system, which means that aspects of the colonial system of governance were continued in form and substance, while new systems were also devised to address the issues of development and independence.

Today, the law in Uganda can be found in the following instruments:

- (i) The 1995 Constitution of the Republic of Uganda;
- (ii) Acts of Parliament;
- (iii) Statutory instruments or subsidiary legislation made by Executive authorities;
- (iv) Case law, some drawn from English Common Law, but now mostly as developed by local Ugandan courts;
- (v) International treaties and conventions, and (vi) Customary Law (where applicable)

THE CONSTITUTION OF THE REPUBLIC OF UGANDA

According to Article 2, the Constitution is the supreme law of the land, and as such every enactment and judicial decision must conform to the Constitution. Several court decisions have declared acts of parliament unconstitutional either in total or to the extent of the inconsistency between the law and the Constitution. It is thus a basic document which establishes the foundation on which all other laws in the country are constructed.

ACTS OF PARLIAMENT

According to Article 79(1) of the Constitution, Parliament is the chief law making body in the country. The institution employs a committee system whereby all draft legislation (Bills) must go through a staged process of enactment, including public participation and debate. The acts of parliament were revised and organized in 2000 into chapters (CAP) which were put together to form the so-called Red volumes which contain the principal legislation.

STATUTORY INSTRUMENTS

Much as Parliament has the power to make general laws, under Article 79(2) whenever necessary it may delegate such power to other bodies which include ministers. It is the laws made by ministers that are termed as subsidiary legislation. In 2000 these laws were also revised and inserted in the blue volumes which run from volume XIV to XXVIII. The blue volumes therefore contain laws made by bodies excluding those by parliament

THE LAW APPLICABLE

These are the laws that give legitimacy to any action or prohibit any

action and make up the body of legislation, case law and practice that govern the legal regime in Uganda. In the colonial period, the orders in council and laws made under it were the laws applicable. Also applicable were statutes of general application, i.e. those laws which had been made in Britain or India before colonialism and were generically applied to the Uganda



Protectorate. However, in the case of *Uganda Motors Limited v. Wavah Holdings*, the court held that statutes of general application are no longer applicable to Uganda which was now an independent country. Therefore laws made in Britain or India to apply to all colonies were no longer applicable.

Since 1995, the courts have also emphasized that Uganda is a constitutional republic, as opposed to being governed under a parliamentary system of government. This means that the constitution is the supreme law of the land and has binding effect and all legislation must conform to the Constitution. In this way, laws which do not conform to the Constitution have been declared as null and void, e.g. the Referendum Act (in 2000), sections of the Divorce Act (in 2005) and most recently, the Anti-homosexuality Act last year. Similarly, customs are only valid if they are consistent with the Constitution. Thus, the courts have declared practices such as female genital mutilation (FGM) as unconstitutional. However, Customary Law which does not offend the Constitution will be upheld. Thus, in the case of *Serunkuma v. Kiwuwa and Namazzi* the court enforced a custom regarding the marriage of clan mates.

COMMON LAW AND CIVIL LAW

Uganda operates a system of Common Law, as opposed to Civil Law which operates in many countries. In the case of *John Nsereko v. George Gitta*, it was stated that Common Law meant the law created out of the customs of the people and embodied in decisions of the judges. Thus, Common Law consists of the following elements:

- (i) It is judge-made law, as opposed to the law in statutes;
- (ii) The Doctrine of Precedent is respected;
- (iii) There is an adversarial system of litigation, and
- (iv) Procedure plays a decisive role and specific procedures must be followed especially in criminal cases.

Civil law on the other hand is characterized by codification; absence of the doctrine of precedent and the presumption of guilt in criminal cases. The judges in such a system involve themselves directly with litigation and can even carry on investigations.

DOCTRINE OF PRECEDENT

One of the most distinguishing features of the Common Law system is the doctrine of precedent. It was an innovation that was developed by the courts to ensure consistency in quality and uniformity in the judicial process. Precedent can generally be referred to as a judicial decision which contains an underlying principle—the Ratio Decidendi—that has

the force of law which subsequently either binds or is persuasive to future courts when considering similar material facts.



The facts of a case must be similar in material respects with those in the case alleged to be the precedent. For an opinion to have the weight of a precedent it must be established that:

- The decision was an opinion given by a judge of a court of record;
- It must be an opinion the formation of which is necessary for the decision of a particular case;
- It must be a position of law and not simply comment or observation (obiter dicta). Any decision given obiter is not part of the ratio decidendi; they are mere casual expressions of opinion by a judge. Statements given obiter are not exactly worthless but their importance depends on factors such as the reputation of the judge or the hierarchy of the court.

TYPES OF PRECEDENT

You basically have two types of precedent, viz., binding and persuasive.

BINDING PRECEDENT

A binding precedent is a judicial decision that binds future courts when determining a matter legally and factually indistinguishable from the one in which the precedent was employed. Courts of first instance cannot question a decision of a court superior to them. This position was affirmed in *Mohammed v. Barkley* where it was held that the high court is bound by the decisions of the court of appeal even if a judge does not approve of them.

PERSUASIVE PRECEDENT

Persuasive precedent consists of decisions by courts which are not binding because they may be made by the same court or by courts in the same hierarchy, or because they are given obiter.

AVOIDING THE DOCTRINE OF PRECEDENT

Distinguishing

Even where precedents may ordinarily be binding in determining a certain case with similar facts in certain issues, courts may technically avoid following such precedents by way of distinguishing. The material facts may be distinguished restrictively or generally, and this is done by simply saying that a particular case is irrelevant to the later case.

COMMON LAW AND STATUTE LAW

A statute is an express and formal laying down of rules of conduct to be observed in the future by persons to whom the statute is expressly made applicable. Statute law is basically written law contained in various laws made by the principal law-making body or any other body which has been delegated such power. These could be acts of Parliament, Decrees made by the head of state, Ordinances which in colonial times were

made by the governor or which after 1967 were made by the president in the absence of a standing parliament.

In terms of hierarchy written law is superior to Common Law therefore when common law is in conflict with written law the latter prevails.

Statute law



exists in order to outlaw Common Law principles which have outlived their usefulness. Statute law is written while common law is found in the decisions of courts in reported or unreported cases.

CIVIL AND CRIMINAL LAW

Criminal law is concerned with punishing offenders and is enshrined mainly in the Penal Code Act. On the other hand, civil law is concerned with disputes between individuals or legal persons who may include government or public bodies. While criminal proceedings end in an acquittal or conviction, civil proceedings end in the finding if one is liable or not. The burden of proof in civil cases is on a balance of probabilities while in criminal cases the prosecution must establish guilt beyond all reasonable doubt.

WRITTEN AND UNWRITTEN LAW

Written law includes the Constitution, Acts of Parliament and subsidiary legislation, while unwritten law includes laws whose principles are not recognized but not written anywhere e.g. Common Law, and Customary Law. Written law takes precedence over unwritten law.

SUBSTANTIVE AND PROCEDURAL LAW

Substantive law is the actual law as opposed to adjectival law while procedural law are the formal steps to be taken in an action or other judicial proceeding e.g. the procedural law of the Penal Code is found in the Criminal Procedure Code Act. Procedural law lays down mechanisms through which substantive law can be enforced.

PUBLIC LAW AND PRIVATE LAW

Public law consists of the branches of law that essentially govern the relationship between the state and the individual such as Constitutional Law, and Administrative Law. Private law is a branch which is concerned with rights and duties of individuals. These may be directly imposed by the law or through the consent of individuals Private law, for example includes the law of torts.

COMMON LAW AND EQUITY

Equity is a body of laws of fairness and natural justice that was developed by the courts of Chancery in England in order to remedy the effects of Common Law which seemed to cause a miscarriage of justice when applied indiscriminately. It has been kept alive in form of precedents which carry on and has overtime been recognized as a source of law. Section 14(3) of the Judicature Act states that written law, Common Law and doctrines of Equity will be applied as law in the courts of Uganda. Equity prevails over the Common Law.

CUSTOMARY LAW

“Custom” is defined as a “... rule of conduct, which is obligatory on those within its scope, and established by long usage. Valid customs must be of



immemorial antiquity; they must be certain and reasonable, obligatory, and not repugnant to Statute Law, although it may derogate from the common law. In other words, a custom is a perception of a way to behave and as a source of law, customary law is the body of perceptions on how the member of a particular community is supposed to behave in relation to family, land, and personal law etc.

The High Court in *Kiwuwa's* case stated that a custom is defined as a practice which has been followed in a particular locality and in such circumstances that it has come to be accepted as part of the law in that locality.

Over time, the courts in Uganda have pointed out certain essentials of a custom in order for it to qualify as a source of law:

- A custom must be reasonable in nature;
- It must be followed continuously and have immemorial antiquity, and
- It must be certain

Customary law/civil customary law may exist and operate on its own or it may operate side by side with another nature of law. Such customary law must be accepted, established and binding on a given society or tribe in their social relations. It may be uniform to a number of societies or it may vary from one area to another. Article 37 of the Constitution upholds and protects the right to culture and similar rights, while Chapter Sixteen provides for the institution of Traditional and Cultural leaders, which in many respects are regarded as the custodians and enforcers of Customary Law.

MUNICIPAL LAW AND INTERNATIONAL LAW

Municipal law is the group of laws that apply within the state and regulates relations amongst citizens as well as relations between the citizens and state. It therefore has geographical limits. International law is that which is accepted to govern international relations between states. It is composed of conventions, treaties and so on. International law may be public where it is a body of rules and principles of action binding upon civilized states and in their relations with one another or it may be private where by the body of rules determine the questions of jurisdiction in cases involving a foreign element. Uganda employs a dualist as opposed to a monist system of applying International Law, which means that all international treaties must be domestically approved by Parliament before they can be regarded as applicable.

THE COURT SYSTEM IN UGANDA

Article 126 provides that judicial power is derived from the people and shall be exercised according to the aspirations of the people. While Section 2 of the Interpretation Act defines a court to mean a court of competent



jurisdiction, Section 2 of the Evidence Act defines a “court” as any one that is legally authorized to take evidence with the exception of arbitrators.

Article 126 provides guidelines which apply to the adjudication of disputes, including the following:

- (i) Justice irrespective of status;
- (ii) No delay;
- (iii) Adequate compensation to victims of wrongs;
- (iv) The promotion of reconciliation between parties, and
- (v) The delivery of substantive justice without undue regard to technicalities.

Article 129 establishes the following courts of judicature i.e.

The Supreme Court;

Under Article 132, the Supreme Court is the final court of appeal. It is composed of at least 7 judges with qualification of 15 years professional experience as an advocate, and headed by the Chief Justice of Uganda. The coram is 5 judges and these usually hear appeals from decisions of the Court of Appeal and the Constitutional Court, but under Article 104, it has original jurisdiction in Presidential Election Petitions, which it has done in two instances, i.e. 2001 and 2006, in the case of Rtd. Col. Kizza Besigye v. Yoweri Kaguta Museveni and the Electoral Commission.

The court is not bound by its previous decisions and in Article 131 the Supreme Court may depart from its previous decisions when it appears right to do so. Being the highest court of the land, all the lower courts are bound by its decisions.

COURT OF APPEAL/CONSTITUTIONAL COURT

Article 134 establishes the Court of Appeal which is charged with the duty of hearing appeals from the High Court. It is composed of 11 Justices of Appeal of which the quorum is 5 while hearing Constitutional petitions and in ordinary civil and criminal /appeals cases 3 Justices form the quorum. The Deputy Chief Justice is the head of the Court of Appeal.

The court is the primary court for the decision of matters to do with the interpretation of the Constitution. In the case of Maj. Gen. Tinyefuza v. Attorney General it was stated that the constitution gives the constitutional court jurisdiction to interpret the constitution in the sense of giving meaning to the words and expressions used in it. There has been some debate as to whether the Constitutional Court has the powers of enforcement or simply interpretation, although in certain respects this is

an academic argument.

HIGH COURT

The High Court is established under Article 138 and is headed by the Principal Judge (PJ) and such a number of judges as Parliament may prescribe. The court has unlimited original jurisdiction over all matters of a civil and criminal nature. The courts have stated that this jurisdiction is not limited even where Parliament has set up special courts or tribunals to



handle specific issues. Thus, in the case of Rabble Enterprise Uganda Limited v. The Commissioner General of URA the issue was whether the High Court had unlimited jurisdiction in all matters which tax tribunals had the jurisdiction to handle. The Court of Appeal decided that the High Court had unlimited jurisdiction whether or not Parliament had given any other tribunals such jurisdiction. The High Court operates through a system of divisions (Commercial, Land, Criminal, etc.) and circuits when sitting outside Kampala.



General Background to the Ugandan Judiciary

When Britain colonialists took control of Uganda in 1884 after the Berlin Conference they found that the judicial system of Uganda consisted of a number of local authorities such as tribal kings, tribal chiefs, clan leaders, kin group, elders all who worked primarily to enforce local customary law. Islamic law was also practiced in some areas of northern Uganda.

The Uganda Order-in-Council promulgated by the British Monarch in 1902 established the High Court of Uganda and other subordinate Courts. Thereafter, British jurisprudence was gradually imposed,

spreading more quickly across the South than the North of Uganda where Islamic law was prevalent especially in West Nile region.

At independence, the above mentioned provisions were re-enacted with slight modifications. The Order-in-Council imported into Uganda, English



law and English legal culture which continue to form the basis of the country's legal system even now with slight modifications.

The resulting legal system consisted of the High Court, which heard cases involving murder, rape, treason, and other crimes punishable by death or life imprisonment; and subordinate magistrates' courts, which tried cases for crimes punishable by shorter terms of imprisonment, fines, or whipping. Magistrates' court decisions could be appealed to the High Court.

However, the 1967 Constitution declared that decisions of the High Court could be appealed to the Court of Appeal for Eastern Africa (CAEA), or to a new Court of Appeal established by Parliament. This became the de facto legal system until the collapse of the East African Community (EAC) in 1977 when the Uganda government withdrew from the CAEA and created a national Court of Appeal.

It should be noted, however, that the legal system virtually broke down during the 1970s, in part because Idi Amin undermined the judicial system when it attempted to maintain its independence on decision making. The end of Amin's regime, did itself bring any significant improvement in the criminal justice system.

When Yoweri Museveni became president of Uganda in 1986, he pledged to end the army's tyranny and reform the country's Criminal Justice System. The NRM government then introduced the Constitution (Amendment) Bill, 1987, and the Judicature Act (Amendment) Bill, 1987.

The name of the Court of Appeal was thus changed to the Supreme Court of Uganda. The Chief Justice became its head and the chief administrator of the judiciary.

Two new positions were created, a Deputy Chief Justice of the Supreme Court and a Principal Judge, who became head of the High Court. Appeals from any decision of the High Court were referred to the Supreme Court. The current Court of Appeal is thus a child of the 1995 Constitution.

In 1988, the Government began the process of developing a new Constitution based on public consultation. The 1995 Constitution now forms the supreme law of Uganda and spells out more specifically the key obligations of the Judiciary in Chapter 8 .

Also in 1988, the NRM government substantially changed grass-roots adjudication by giving judicial powers over civil disputes, which up until then had been exercised by chiefs, to elected Resistance Committees (now Local Council Courts) in each village, parish, and sub-county. With a

predominantly rural population, many Ugandans seek justice at the local level. State sponsored local tribunals or Local Council Courts (LC Courts) apply customary norms and provide local fora for dispute resolution. Local council courts are established from the village level (LC1), to the parish level (LC2), and on to the sub-county level (LC3). The LC III Court consists of



independent persons other than the LC Committee members. The courts have jurisdiction over limited civil matters and petty criminal offences.

They also deal with cases governed by customary law including property, interstate inheritance, and marital disputes. There are close to 56,000 LC Courts countrywide.

Vision, Mission, Mandate, Objectives and Functions of the Judiciary

The Vision

The Vision of the Judiciary is “Justice for All”

The mission

The mission of the Judiciary is; “An independent, competent, trusted and accountable Judiciary that administers justice to all.”

The Mandate

The mandate of the Judiciary as enshrined in Article 126(1) of the constitution of the Republic of Uganda states that “Judicial power is derived from the people and shall be exercised by the courts established under this constitution in the name of the people and in conformity with law and with the values, norms and aspiration of the people”. In addition, Article 128(1) states that; “In the exercise of judicial power, the courts shall be independent and shall not be subject to the control or direction of any person or authority”.

Objectives

The main objective:

The Judiciary’s main objective which is in line with the J/LOS goals and objectives is “To improve access to Justice for all people in Uganda”.

Specific objectives:

The specific Objectives of the Judiciary include;

- i. To ensure that Justice is done to all irrespective of their social or economic status.
- ii. To ensure that Justice is administered in a timely manner without delay.
- iii. To ensure that adequate compensation is awarded to victims of wrongs.
- iv. To promote reconciliation between parties.
- v. To administer substantive Justice without undue regard to technicalities.

Functions of the judiciary

The main functions of the Judiciary are to

- i. Administer justice through resolving disputes between Citizen and Citizen and between the State and Citizen;
- ii. Interpret the Constitution and the laws of Uganda;
- iii. Promote the rule of law and to contribute to the maintenance of order in society;



- iv. Safeguard the Constitution and uphold democratic principles;
- v. Protect human rights of individuals and groups

Current Management Structure of Judiciary

Headed by the Chief Justice, the Judiciary is administered under a two-tier system; judicial; headed by the Chief Registrar and assisted by Registrars and Chief Magistrates in their respective Jurisdictions; and the Finance and Administration; headed by the Secretary to the Judiciary and assisted by the Under Secretary.

Current Court Structure

The current court structure consists of the Supreme Court at the top, a Court of Appeal/ Constitutional Court, the High Court and the Magistrates Court. Also there are the Local Council Courts.

The Supreme Court

The Supreme Court is established by Article 130 of the Constitution and stands out at the top of the judicial pyramid as a final court of Appeal in Uganda. It has no original jurisdiction save as conferred by law like in the case of Presidential Elections petitions.

The Court is constituted by the Chief Justice and not less than seven justices, as Parliament may by law prescribe. It is duly constituted at any sitting by five Justices, but when hearing appeals from decisions of the Court of Appeal, a full bench of justices has to be present. Parliament has increased the number of justice to ten excluding the Chief Justice. The decisions of the Supreme Court form precedents followed by all lower courts.

Court of Appeal / Constitutional Court

The Court Appeal is a child of the 1995 Constitution. It is the second Court of record, and inter-positioned between the Supreme Court and the High Court.

The Court of Appeal of Uganda came into being following the promulgation of the 1995 Uganda Constitution, and the enactment of the Judicature Statute, 1996.

Article 134 established the structure of the Court of Appeal to consist of:

- i. The Deputy Chief Justice, and
- ii. Such number of Justices of Appeal not being less than seven as Parliament may by law prescribe. This has been increased to fourteen

High Court

The High Court of Uganda is established by Article 138 of the

Constitution and stands as a symbol of Justice. It is the third court of record in order of hierarchy and has unlimited original jurisdiction i.e. it can try any case of any value or crime of any magnitude in Uganda. Appeals from all Magistrates Courts go to the High Court. The High Court is headed by the Honorable Principal Judge and is responsible for the administration of the court and has general supervisory powers over Magistrate's Courts.



The High Court conducts most of its business at its headquarters but with the decentralization of the High Court, its services are now obtained at its eight divisions in Kampala: The Civil Division, the Commercial Division, the Family Division, the Criminal Division, the Land Division, the Execution and Bailiffs Division, the International Crimes Division and the Anti Corruption Division.

The High Court is also decentralized into circuits at Fort Portal, Arua, Masindi, Gulu, Jinja, Masaka, Mbale, Mbarara, Soroti, Lira, Nakawa, Masindi and Kabale.

Its current approved posts of judges are 51 judges including the Principal Judge. It is hoped that the Parliamentary resolution to increase this number to 82 will soon come to pass.

The High Court is situated on Plot 2, The Square just by the Constitutional Square. The building is comprised of three wings that house the Chief Justice, Deputy Chief Justice, Principal Judge, Judges of the High Court, Chief Registrar, Registrars and the Secretary to the Judiciary/staff.

Magistrates Courts

Magistrate's Courts are the lowest subordinate courts whose decisions are subject to review by the High Court. There are three levels of Magistrates courts: Chief Magistrates, Magistrates Grade I and Magistrates Grade II. These courts handle the bulk of cases in Uganda. Presently the country is divided into 38 Chief Magisterial areas administered by Chief Magistrates who have general powers of supervision over all magisterial courts within the area of their jurisdiction.

There are currently 38 Chief Magistrates' Courts, 120 Magistrates' Grade I Courts and over 100 Magistrates' Grade II Courts. Each Chief Magistrates' Court has a Chief Magistrate, and Magistrates Grade I. Magistrates Grade II's have recently been posted to individual station to provide wider coverage of services to the people.

The Judiciary also supervises the Local Council courts as well as tribunals.

Challenges

There are several challenges embedded in the structure and functions of the Judiciary. I will mention only one. The Constitution provides in Chapter Eight the post of the Chief Registrar and a registrar. The functions, privileges and duties of these offices have not been provided just like for many constitutional posts. Even though the Judicature Act, the Civil Procedure Act and Rules, the Magistrates Courts Act etc try to define the functions of these positions but these are not adequate. You may recall that the functions of these judicial

offices have traditionally been by practice or legal inheritance from the British colonial masters yet no efforts have been made to clearly define and provide for these positions. The vacuum created has brought in mal administration of the Judiciary. These posts should be properly defined to avoid the current vacuum in the administration of this



important arm of the state. This scenario can possibly be cured if an administrative law is put in place to clearly define the administration of the Judiciary taking into account its superior position as an independent arm of the state.

